

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 12-33 Revision of Salaries and Allowances for Elected Officials of the Chickasaw Nation

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the passage of Amendment VII to the Constitution by the qualified electors of the Chickasaw Nation, repealed Section 11 of Article VII of the Constitution, thereby enabling Amendment IV to the Constitution of the Chickasaw Nation to take the place of Section 11 of Article VII, and

WHEREAS, in accordance with Amendment IV to the Constitution, wherein the Tribal Legislature shall have the power to fix and prescribe salaries and allowances for all elected and appointed officials and employees of the Nation, by providing that the Tribal Legislature shall review said salaries and allowances every fourth year and shall increase or decrease as necessary, and

WHEREAS, the last salary and allowance increase for elected officials was done on October 1, 1991, with the adoption of Tribal Law 9-001 and now codified under Title 2, Section 2-421 through Section 2-429, and

WHEREAS, on October 1, 1995, four years will have passed since the last salary and allowance increase for elected officials was adopted.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature approves the following salary and allowance increases for those elected officials as specified herein and amends Title 2, beginning with Section 2-425, as indicated, herein:

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Amend Section 2-425 - Judicial Department Salaries, to read as follows:

SECTION 2-425 JUDICIAL DEPARTMENT SALARIES.

(A) The base salary for the Justices of the Supreme Court of the Chickasaw Nation shall be \$400.00 per month, provided that the Justice that is elected to serve a term as Presiding Justice shall receive an additional \$100.00 per month for the duration of the time in which he or she serves in that capacity.

(B) Attendance at one or more scheduled, special or called meeting or other official gathering that involves participation in official business of the Chickasaw Nation shall entitle a Justice an additional allowance of \$50.00 for the meeting day. However, should attendance at such scheduled, special or called meeting or other official gathering by a Justice exceeds four (4) hours, then the Justice shall be entitled to receive \$100.00 for the meeting day. In no event shall a justice's additional allowance exceed \$100.00 per meeting day.

Amend Section 2-426 - Legislative Department Salaries, to read as follows:

SECTION 2-426 LEGISLATIVE DEPARTMENT SALARIES.

The base salary for all Tribal Legislators shall not include any travel allowances, but travel reimbursement expenses shall be in accordance with legislative travel policies. The base salary for all Legislators shall be paid according to the following two (2) formulas, covering both part-time and full-time Legislators:

(A) Regular monthly salary for part-time Legislators shall be \$500.00. A Legislator that chooses to work part-time may not change to full-time until the next Legislative year.

(B) Regular monthly salary for full-time Legislators shall be \$2,084.00. A Legislator that chooses to work full-time may not change to part-time until the next legislative year. Full-time legislators shall be entitled to enroll in the retirement program of the Chickasaw Nation. Applicable taxes and other deductions from salary shall be in accordance with tribal policy. (See provisions on election for Self-Employment taxes, below.)

(1) The Chairperson or the Chairperson Pro Tempore shall receive an additional \$250.00 per month for the duration of the time in which he serves in that capacity.

(2) The Secretary or the Secretary Pro Tempore shall receive an additional \$150.00 per month for the duration of the time in which he serves in that capacity;

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(3) All Legislators shall receive a 3% cost of living allowance on October 1, 1997, and another 3% cost of living allowance on October 1, 1998.

(C) For part-time Legislators, attendance at one or more scheduled, special or called meeting or other official gathering that involves participation in official business of the Tribal Legislature or of the Chickasaw Nation, shall entitle a Legislator to an additional allowance of \$100.00 for the day for their attendance at such meetings or gatherings. Should said meeting or meetings and/or those other official gatherings on any given day exceed four (4) hours duration, then the attending Tribal Legislators shall, instead, be entitled to \$150.00 as the additional allowance for that day. Such meetings shall include, but not limited to, regular or special committee meetings, regular or special Committee-of-the-Whole meetings, Regular Legislative Sessions, Special Legislative Sessions and other official gatherings of the Nation requiring the participation of members of the Tribal Legislature.

(D) Tribal Legislators, upon their written authorization, may direct the Finance Department of the Chickasaw Nation to deduct from their salary, and all other allowances as itemized, herein, one-half of the applicable Federal Self-Employment Tax, with the Nation paying the other one-half of said tax, in the same manner as FICA withholdings are done for employees of the Nation. Any Tribal Legislator that is receiving Social Security Benefits in which their annual income from salary and allowances as a Legislator does not exceed the maximum allowable outside source of income established by the Social Security Administration in order to continue to receive full Social Security Benefits, then any such Legislator, upon their written authorization, can direct the Finance Department of the Chickasaw Nation, to deduct no self-employment taxes from the salary and allowances received as a Legislator.

Amend Section 2-427 - Executive Department Salaries, to read as follows:

SECTION 2-427 EXECUTIVE DEPARTMENT SALARIES.

(A) The base salary of the Lieutenant Governor shall be \$75,000.00 annually, plus inclusion in the tribal retirement investment program at 15%. One-half of the investment in the retirement program shall be deducted from the Lieutenant Governor's base salary and one-half shall be matched by the Chickasaw Nation. On October 1, 1997, he shall receive an additional \$2,500.00 per year to his base salary. On October 1, 1998 he shall receive an additional \$2,500.00 to his base salary, which shall provide an \$80,000.00 annual base salary at the beginning of the fourth year.

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(B) The base salary of the Governor shall be \$95,000.00 annually, plus inclusion in the tribal retirement investment program at 15%. One-half of the investment in the retirement program shall be deducted from the Governor's base salary and one-half shall be matched by the Chickasaw Nation. On October 1, 1997, he shall receive an additional \$2,500.00 per year to his base salary. On October 1, 1998 he shall receive an additional \$2,500.00 to his base salary, which shall provide an \$100,000.00 annual base salary at the beginning of the fourth year.

Section 2-428 - Reimbursable Costs remains unchanged, and is provided, herein, for informational purposes, only:

SECTION 2-428 REIMBURSABLE COSTS.

All salaries and benefits of all elected officials shall be paid from tribal funds; however, any costs allowable under federal law to be reimbursed from federal sources for activities and/or actions taken by the tribal government or its employees, shall be billed on a monthly basis to the Tribe's indirect cost pool or, in such cases as are allowable and lawful, to the appropriate federal program, grant or contract. The Finance Department, under the supervision of the Governor, shall be responsible for compliance with this Section.

Amend Section 2-429 - Repeal of Prior Legislation, to read as follows:

SECTION 2-429 REPEAL OF PRIOR LEGISLATION.

All prior legislation which is in conflict with PR12-33 is hereby repealed.

Add Section 2-430 - Effective Date, as follows:

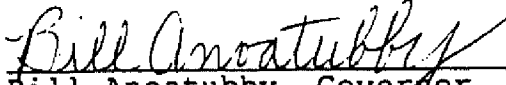
SECTION 2-430 EFFECTIVE DATE.

These provisions, as amended, shall not go into effect until October 1, 1995.

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on September 15, 1995, by a vote of 7 ayes, 5 nays, 1 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: SEP 15 1995

CHICKASAW TRIBAL LEGISLATURE

**Permanent Resolution Number 12-33
Revision of Salaries and Allowances for Elected Officials
of the Chickasaw Nation**

Explanation: Adoption of this resolution would establish the salary and allowances for Judicial, Legislative, and Executive departments' elected officials for the next four years.

Requested by: The Legislative Committee

Presented by: Mrs. Mevelyn Kirkpatrick, Chairman
The Legislative Committee